



LAST MINUTE FINANCE PTY LTD

ACN: 127 411 474
ABN: 78 127 411 474

Credit Licensee
Licence Number 394938

SECURED LOAN AGREEMENT COMPANY TO INDIVIDUAL

THIS SECURED LOAN AGREEMENT made on
THE 23rd Day of January 2023

BETWEEN

LAST MINUTE FINANCE PTY LTD ACN 127 411 474 (the “Lender”); AND

RICHARD MCLEAN (the “Borrower”)

THIS SECURED LOAN AGREEMENT made on the 23rd Day of January 2023

BETWEEN:

LAST MINUTE FINANCE PTY LTD ACN 127 411 474 of

BEVERLY HILLS, NSW 2209

(the “Lender”);

RICHARD MCLEAN of MITCHAM, VIC 3132

(the “Borrower”)

WHEREAS:

- A. The Borrower is indebted to the Lender for the amount of the loan as set out below in Clause 1.
- B. The Lender has and may advance further moneys to the Borrower by way of loan.
- C. The Lender and the Borrower wish to formally record the terms of all borrowings past, present or future that might be made by the Borrower from the Lender and unless otherwise agreed in writing, the terms of this Loan Agreement shall apply to all such borrowings.

THE PARTIES AGREE AS FOLLOWS:

1. ACKNOWLEDGEMENT OF THE LOAN

The Borrower acknowledges that the Lender has lent to the Borrower the sum of **\$5000** (the “Loan”). The Loan Contract was made to the Borrower on **23/01/2023** The Loan is secured.

The Borrower further acknowledges that the terms of this Loan Agreement are the terms upon which the Lender is prepared to continue to lend the Loan to the Borrower.

The Borrower acknowledges that the Lender may at any time hereafter lend further moneys to the Borrower. These further advances will form part of the Loan and the terms of this Loan Agreement apply.

The Borrower has represented to the Lender that the purpose of the Loan is secured personal loan.

2. REPAYMENT OF LOAN

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All moneys lent to the Borrower by the Lender including the Loan must be repaid by the Borrower to the Lender as follows:

- (a) On or before the **23/01/2028**; or
- (b) upon any default by the Borrower; or
- (c) upon any other event referred to in this Loan Agreement that entitles the Lender to require repayment of the Loan.

If the Loan becomes repayable then the Lender may at the Lender's discretion required

Only partial repayment of the Loan, in which event the balance of the Loan not repaid continues to be immediately due and owing and the terms of this Loan Agreement apply to that balance.

The Borrower promises and undertakes to repay the Loan to the Lender as set out in this Clause 2. Any failure by the Borrower to comply with this clause is a breach of an essential term and notwithstanding anything in this Loan Agreement the whole of the Loan then owing becomes immediately due and payable.

3. RIGHT TO REPAY

Notwithstanding Clause 2, the Borrower may at any time repay the whole or any part of the Loan at any time even though no demand has been made for repayment and even though the term of the Loan has not expired.

No Fees will be charged from borrower in lieu of early repayments.

4. INTEREST

The Borrower will pay interest to the Lender on the Loan on so much of the Loan as is outstanding from time to time at the rate of **10.5%** per annum.

The Borrower will pay interest on the Loan or any balance of the Loan on a monthly basis (**\$107.10** monthly). This will include Interest and Principal. The interest is to be calculated on the amount of the Loan outstanding at the beginning of the Interest Period. Any failure to pay interest by the Borrower under this clause is a breach of an essential term of this Agreement. If the Borrower is paying by installments, such installments shall first be applied towards the payment of any interest outstanding at the time and secondly as to the balance in whole or partial repayment of the Loan. The interest is to be calculated on the amount of the Loan outstanding at the beginning of the Interest Period. Any failure to pay interest by the Borrower under this clause shall be a breach of an essential term of this Agreement.

5. DEFAULT BY BORROWER

If the Borrower defaults in paying any installment of the Loan in accordance with Clause 2, interest when due or if the Borrower is declared bankrupt or becomes insolvent, then the Borrower is in default and the Lender may, notwithstanding anything elsewhere contained, by written demand require immediate repayment by the Borrower of the whole of the amount of the Loan or any balance outstanding.

The written demand signed by the Lender may be served on the Borrower at the Borrower's last known address. A written demand may be served by pre-paid post, and if served by post, will be deemed received 3 days after the date of posting. If served

Personally, the written demand will be deemed served on the date of personal service. A written demand may be served by facsimile. If sent by facsimile, it will be deemed received by the Borrower on the day after the day it has been sent by facsimile. A facsimile transmission sheet shall be conclusive evidence of the written demand having been sent to that facsimile number.

6. WHOLE AGREEMENT

This Loan Agreement represents the whole Agreement between the Lender and the Borrower concerning the lending to the Borrower of the Loan. All representations, understandings or prior agreements concerning the Loan are acknowledged as having been waived and of no force or effect whatsoever.

7. SECURITY

The loan agreement is secured as the loan will be secured with payment protection insurance. The insurance premium needs to be arranged by the borrower.

If the loan repayments are on time by the borrower for 3 months, the insurance premium will be credited to the borrowers account.

If the borrower wish to provide the security on the loan, the insurance is not mandatory on the loan. In case of security provided by the borrower, the valuation of the security will be done. After the valuation of security, the lender may lend up to 75% of the value of security.

LOAN CONTRACT

Monday, Jan 23, 2023

Dear Richard Mclean,

Please find the following indicative terms and conditions that our company is prepared to provide finance.

Applicant Names	Richard Mclean
Address	Mitcham, VIC 3132
Lender	Last Minute Finance Pty Ltd
Security Address	N/A

Borrower/s	Richard Mclean
Application Number:	3323911/DSR
Loan Advance	\$5000.00
To client	
Application Fee	00.00(WAIVED)
Establishment Fee	00.00
Insurance Premium	\$450.00 (Including GST)
Interest Rate	10.5% pa
Loan Term	5 Years
Repayment Amount	\$107.10 Repayments on your loan are by way of direct debit From a nominated account you have with a financial institution. Alternatively, you may also elect to regularly direct credit the total amount or a nominated portion of your salary or wage to the loan account. If you elect this option you should ensure you retain sufficient funds in the loan account to cover your repayments.

Initial: _____

Borrower to execute items

- 100 Point ID required
- Insurance on Loan Required
- Signed Acceptance (initialed each page) returned.

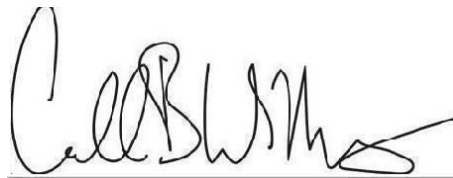
This Fee is to cover the Insurance payment, and is 100% refundable if the loan does not proceed to the settlement or proceed to the settlement.

IN WITNESS WHEREOF the parties have executed this Loan Agreement on 23/01/2023

SIGNED BY
Richard Mclean

Signature _____

SIGNED BY)
LAST MINUTE FINANCE PTY LTD)
ACN 127 411 474 pursuant to)
Section 127 of the *Corporations Act 2001*)
in the presence of:



Signature
Print Name: Callum B Willems